

TENTATIVE RULINGS**August 24, 2026**

	Case Name	Tentative
101	2023-01333212 Sampson vs. Rocha	Motion – Other Plaintiff Michelle Sampson’s motion for fees and costs is denied. These motions all suffer from the same procedural defects as the other motions Plaintiff has brought. (See e.g., 9/16/24 Minute Order, 8/19/24 Minute Order, 2/3/25 Minute Order, 3/10/25 Minute Order.) First, no proof of service was filed with the motion. (See Code Civ. Proc. § 1014, California Rules of Court, rule 3.1300(c).) Second, Plaintiff’s motion did not include a memorandum of points and authorities. California Rules of Court rule 3.1113(a) states, “A party filing a motion . . . must serve and file a supporting memorandum.” That rule further states, “The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial.” (Cal. Rule Ct., rule 3.1113(a).) Finally, no legal authority is provided to support Plaintiff’s request. “Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (<i>People v. Stanley</i> (1995) 10 Cal.4th 764, 793). For the foregoing reasons, the motion is denied. The clerk is ordered to provide notice to all parties.
103	2025-01487584 Tung vs. Forniss	Motion to Strike Portions of Complaint Defendants Alan Forniss and Exp. Realty of California, Inc.’s motion to strike portions of Plaintiff Derek Tung’s First Amended Complaint is denied. Defendants will be provided the opportunity to respond to Plaintiff’s late opposition at the hearing should they wish, if they are unable to file a reply brief given the time constraints. While the Court has exercised its discretion to consider Plaintiff’s late opposition this time, Plaintiff is cautioned that in the future, any briefs must be timely filed or the Court may refuse to consider an untimely brief. (Cal. Rules of Court, rule 3.1300(d). Defendants move to strike Plaintiff’s request for “reasonable attorneys’ fees, where recoverable by law.” Defendants are correct in arguing that because Plaintiff is pro per, he is not entitled to attorney fees. (See <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 292 (“an attorney who chooses to litigate in propria persona and therefore does not pay or become liable to pay consideration in exchange for legal representation cannot recover reasonable attorney’s